

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 14, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Brown. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Ms Broyles. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 23, 2012. Motion (per Consent Agenda) carried.

Mr. Valdez declared a conflict of interest (business interest in Radio Station KYOY FM) and vacated Council Chambers. Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a Public Hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the N½ of the N½ of the NE¼ of the NE¼ of Section 11, T.13N., R.67W. of the 6th P.M., Laramie County, Wyoming (generally located at the end of West 5th Street, west of Southwest Drive, a/k/a 4121 W. 5th Street). Jim Flesher, Urban Planning Office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402 (a)(i) through (vi). Upon inquiry, Mr. Flesher advised there is a building currently located on the property and stated annexation of the parcel was pursuant to an exception to the 201 agreement recently approved by the governing body. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

An Ordinance amending the City of Cheyenne's Sanitation Fee Schedule. Jim Elias, Public Works Director, advised City ordinance requires an annual review of the fee schedule with rate increases based upon the Southeast Wyoming Consumer Price Index (CPI), which is currently 4.1%, and that the proposed fee increases are in the amount of 4.1% for commercial and residential solid waste collection and disposal services. Mr. Elias reported that a 1% increase was approved for Fiscal Year 2011 (CPI was 3.4%) and no increase was approved for Fiscal Year 2012 (CPI was 3.2%). He noted increased costs in City operations involving expanded areas of service due to

population and commercial growth, and expansion of services in such areas as curbside recycling, lawn waste, electronic waste and household hazardous waste. He advised the proposed rates will increase the monthly fee to a typical residential customer by \$0.85 and the average commercial account (one pick-up a week) by \$3.00 a month. Joe McCord expressed concerns regarding the proposed increase, costs for roll-off containers, and Sanitation truck routes, and requested Sanitation policies be reviewed to determine efficiency of pick-up routes. Reporting for Finance Committee, Mr. Spiker moved to approve on second reading, seconded by Mr. Collins. Upon inquiry, Mr. Elias stated his belief that the City is competitive cost-wise in pricing for roll-off containers compared to private haulers, and explained route patterns that are utilized involving alleys and on-street pick-ups involving the automated container pick-up process. He further advised that the increase in funding from the proposed rate increases would assist to off-set costs, such as transportation costs affiliated with fuel, maintenance, repairs, parts and tires. Concern was expressed regarding the method of billing for multiple business tenants located in one building, and recycling fees assessed involving multiple tenants within residential apartment-type buildings. Motion carried. Voting "yes" -- all members of the governing body present.

An Ordinance approving and establishing revised water rates, sewer rates, tap fees, system development fees, administrative fees, service charges and penalties and septic and commercial dump rates, as recommended by the Board of Public Utilities -- referred to Finance Committee (sponsors - Mr. Brown, Mr. Pierson, Mr. Valdez).

An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code by changing the zoning classification from MUB Mixed-Use Business-Emphasis District to MR-2 Medium-Density Residential-Developing District for Diamond Estates, 3rd Filing, a replat of the North 147.16 feet of Tract 327, Sunnyside Addition, 7th Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Fillmore Avenue and Rock Springs Street) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing the Mayor to sign a Memorandum of Understanding with Laramie County to apply for the Edward Byrne Memorial Justice Assistance Grant. Motion (per Consent Agenda) carried. (#5381)

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to accomplish the Crow Creek Water Reclamation Facility Improvements Project. Motion (per Consent Agenda) carried. (#5382)

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the Snyder Avenue Sewer Rehabilitation Project: West 24th Street to West Pershing Boulevard. Motion (per Consent Agenda) carried. (#5383)

[CA] Resolution prioritizing two Mineral Royalty Chapter 3 Grant requests to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne. Motion (per Consent Agenda) carried. (#5384)

[CA] Resolution approving Sanitary Sewer Service, by User's Agreement, for Everett Winkler, 2619 Whitney Road, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5385)

[CA] Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant, for the purpose of assisting in providing the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311 -- referred to Finance Committee (sponsor - Mr. Brown)

[CA] Resolution approving the budget of the Downtown Development Authority for the Fiscal Year beginning July 1, 2012 and ending June 30, 2013 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing and adopting Post-Issuance Compliance Policies and Procedures for Tax-Exempt Bonds and other Tax-Exempt obligations -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing the Issuance and Sale by the City of Cheyenne, Wyoming, of Refunding Revenue Bonds, Series 2012, dated June 5, 2012 in a principal amount not to exceed \$9,325,000, for the purpose of advance refunding and defeasing the City's Refunding and Improvement Revenue Bonds, Series 2003; prescribing the form of said Series 2012 Bonds; providing for the payment of the principal and interest thereon; and ratifying, approving and confirming previous actions of officers and members of the Governing Body of the City and employees thereof -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution certifying that the Governing Body of the City of Cheyenne has agreed on City projects to be submitted to the State Loan and Investment Board for the 2013 - 2014 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Resolution certifying that the Governing Body of the City of Cheyenne has agreed on City projects to be on the substitute list for 2013-2014 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the N½ of the N½ of the NE¼ of the NE¼ of Section 11, T.13N., R.67W. of the 6th P.M., Laramie County, Wyoming (generally located at the end of West 5th Street, west of Southwest Drive, a/k/a 4121 W. 5th Street) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution amending the City of Cheyenne Annual Action Plans for Fiscal Years 2009-2010 and 2011-2012 to utilize Community Development Block Grant (CDBG) unprogrammed funds for an out-of-cycle grant -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] Resolution amending the City of Cheyenne Annual Action Plan for Fiscal Year 2011-2012 -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for M Robbins Subdivision, a replat of Tract 27, Artesian Tracts, Laramie County, Wyoming (located north of and adjacent to East Nation Road, between South Greeley Highway and Avenue B-6) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Welchester Subdivision, a replat of the West Half of Tract 21, Crestmoor, Laramie County, Wyoming (located south of and adjacent to Welchester Drive, west of College Drive) -- referred to Public Services Committee (sponsor - Ms. Ash). (sponsor - Ms. Ash)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Lewis Subdivision, a replat of the south 127.41-feet of Tract 6, Evans Subdivision, Cheyenne, Wyoming (located at the northeast corner of Wills Road and Laramie Street) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Kum & Go 952 Subdivision, a replat of Lots 2A and 2B, Stephens Addition and a portion of the Northwest 1/4 of Section 34, Township 14 North, Range 66 West, of the Sixth Principal Meridian, Cheyenne, Wyoming (located at the northwest corner of East Lincolnway and Ridge Road) -- referred to Public Services Committee (sponsor - Ms. Ash).

Agreement between the City of Cheyenne and Mercer Group, Inc., for a Personnel Organizational, Classification and Compensation Study and Analysis. Rich Wiederspahn, Human Resources Director, reviewed the Request for Proposal (RFP) process that was utilized resulting in a recommendation from the City's Employment Strategy Group (ESG) committee to enter into the agreement with the Mercer Group. He provided information on criteria used to evaluate and rank proposals received; scope of services that will be provided under the agreement, and benefits to the City involving an independent study and analysis. Phillip Robertson, representative of the Mercer Group, reviewed components that will be included in the study and analysis with regard to the areas of compensation and classification, stating the classification portion will include review of positions through use of employee questionnaires and interviews, overall point score based on 10 factors, and qualifications and skills needed to fulfill job descriptions, with the goal of providing information on equal pay for equal work scenarios. He noted that the compensation element will include a regional salary survey and comparison with other similar market pay plans. He advised that if the study and analysis results reflect that certain salary areas should be adjusted, implementation of any adjustments could be structured to occur over whatever time frame the City decides. Upon inquiry, Mr. Robertson stated the classification study would be conducted prior to the organizational (staffing) study. Commenting in support of the agreement were: Vicki Nemecek, Assistant Director, Public Works Department; Officer John Gay, representative for the Cheyenne Police Protective Association; Sara Vasquez, President, Cheyenne Public Employees Association (CPEA); Todd Feezer, Assistant Director, Parks and Recreation Department, and member of the ESG; Claus Johnson, City employee, former CPEA president and member of the ESG, and Robin Lockman, Deputy City Treasurer and member of the ESG. Comments included the following topics: Benefits of the study assisting with establishing the worth of particular jobs relative to pay scales; information from the study helping the City with future planning as well as having a long term plan in place for employees; having an employee master plan as a mechanism to provide administrative guidance on staffing and compensation levels; study and analysis as a good investment when compared to the percentage of budget attributed to employee costs (i.e. 74% of general fund budget

for Fiscal Year 2013 involves personnel costs); benefits of having a thorough analysis of salaries to ascertain any minimum/maximum salary caps per classification; concerns with the City's lack of current competitiveness relating to retention of current employees and recruitment of new employees affiliated with salary levels, and importance of an independent staffing level study by a professional firm vs. City administrative staff. Mr. Spiker reported there was no recommendation on the item from Finance Committee. Mr. Collins moved to approve, seconded by Ms. Ash. Upon inquiry, Lois Huff, City Treasurer, clarified funding for the study is off-set from previous savings on employee health insurance coverage costs. Upon inquiry, Mr. Wiederspahn reviewed various reasons that employees have left employment with the City, explaining his belief that it is critical to focus on maintaining employees, and noted the importance of having a market pay plan that is comparable with neighboring states and the need to review current pay plan inequities. Discussion included the following topics: Reasons to approve the study; employees expressing support for the study; concern with lack of funding to timely implement any salary adjustments that may be recommended; an analysis being helpful in determining staffing levels, and employee morale. Upon inquiry, Mr. Robertson clarified the scope of services for compensation areas to be studied does not include consideration of the employee benefits package, noting that the factoring in of benefits into a salary study is hard to measure as different types of benefits have different importance levels to individual employees. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Pierson and Mr. Spiker voting "no". (#5838)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College, City/County Health Department, and an area of Laramie County adjacent to the City. Motion (per Consent Agenda) carried. (#5839)

[CA] 2012-2013 Collective Labor Agreement between the City of Cheyenne, Wyoming, and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters. Motion (per Consent Agenda) carried. (#5840)

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Naranjo Civil Contractors and Ayres Associates, Inc., for the design and construction of Saddle Ridge Greenway, Phase I (Community Facility fees) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for use of the parking lot located on the F.E. Warren Air Force Base for public transportation service during the 2012 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District No. 1 for use of buses owned by the Laramie County School District No. 1 for public transportation service during the 2012 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for use of buses owned by the Laramie County School District No. 1 for public transportation service during the 2012 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for usage of city-owned land and buildings for parking, camping and other activities associated with the 2012 Cheyenne Frontier Days celebration -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and The Hartford for life and supplemental insurance coverage for full time city employees -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Delta Dental of Wyoming for dental coverage for full time city employees -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks and Recreation Department, and Laramie County School District No.1 to provide transportation services for the City's Summer Recreation Camp Program -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5800 between the City of Cheyenne, Parks and Recreation Department, and Construction Specialists, Inc., for Powers Field Storage Shed (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Amendment Number One to Funding Agreement, Contract No. 5657, between the City of Cheyenne and Wyoming Department of Transportation for the East Pershing Boulevard Reconstruction Project (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds) -- referred to Finance Committee.

[CA] Consideration of Bid #R-29-12 for furnishing one new 2012 stationary solid waste knuckleboom crane from Ameri-Tech Equipment Company, Casper, Wyoming, for Solid Waste Transfer Station (Solid Waste Management fund). Motion (per Consent Agenda) carried (amount not to exceed \$167,500.00).

[CA] Consideration of Bid #R-32-12 for furnishing three new 2012 cab and chassis with automated high dump refuse side loader body from Peterbilt of Wyoming, Cheyenne, Wyoming, for Sanitation Division (Solid Waste Management fund). Motion (per Consent Agenda) carried (amount not to exceed \$683,702.00).

[CA] Consideration of Bid #R-33-12 for furnishing five new 2012 cab and chassis with automated refuse collection packers with dual arm side loaders from Peterbilt of Wyoming, Cheyenne, Wyoming, for Sanitation Division (Solid Waste Management fund). Motion (per Consent Agenda) carried (amount not to exceed \$1,394,940.00).

[CA] Consideration of Bid #R-38-12 for the sale of surplus property described as the South 66 ft. of Lots 9, 10 and 11, Block 666, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 515 Morrie Avenue) -- referred to Finance Committee.

[CA] Consideration of Bid #R-39-12 for the sale of surplus property described as All of Lots 19 and 20, Block 665, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 916 E. 5th Street) -- referred to Finance Committee.

[CA] Consideration of Bid #R-40-12 for the sale of surplus property described as All of Lots 21 and 22, Block 665, South Cheyenne Addition, located within Section 5, T.13N. R.66W., 6th P.M., Laramie County, Wyoming (a/k/a 922 E. 5th Street) -- referred to Finance Committee.

[CA] Consideration of Bid #M-16-12 for a contract between the City of Cheyenne, Public Works Department, 1% Construction Division, and JTL Group Inc., d/b/a Knife River, Cheyenne, Wyoming, for the Fiscal Year 2012 Milling and Utility Adjustments Project for Street and Alley Division (2007-2010, 2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-17-12 for a contract between the City of Cheyenne, Public Works Department, 1% Construction Division, and S&S Builders, LLC, of Cheyenne, Wyoming, for the Fiscal Year 2012 Miscellaneous Concrete/Intersection Repair Project (2007-2010, 2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-15-12 for a contract between City of Cheyenne, Public Works Department, 1% Construction Division, and JTL Group, Inc., d/b/a Knife River, Cheyenne, Wyoming, for the Fiscal Year 2012 City Overlay Project (2007-2010, 2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-34-12 for furnishing three new 2012 cab and chassis with rear load sanitation refuse collection bodies with tippers for the Sanitation Division from Peterbilt of Wyoming, Cheyenne, Wyoming (Solid Waste Management fund) -- referred to Finance Committee.

Appointment of Howard A. Hill, Sr., to the Mayor's Council for People with Disabilities. Mr. Collins moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2012 Wyoming Association of Municipalities Annual Convention. Motion (per Consent Agenda) carried (Mayor Kaysen, Official Voting Delegate; City Clerk Carol Intlekofer, Alternate Delegate).

Announcement was made of the Appointment of Michael R. O'Donnell to the Board of Adjustment, to be confirmed May 29, 2012.

Announcement was made of a Public Hearing to be held May 29, 2012 at 6:00 p.m. in City Council Chambers, Municipal Building, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's Office for Judi Bufkin d/b/a Judi's Cajun Kitchen, 1719 Central Ave., Cheyenne, Wyoming.

Announcement was made that due to the Memorial Day Holiday on Monday, May 28, 2012, the regularly scheduled meeting of the Governing Body will instead be held on Tuesday, May 29, 2012 beginning at 6:00 p.m. in City Council Chambers, Municipal Building, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Under other business:

Announcement was made that a calcutta, benefitting the Cheyenne Boys and Girls Club, will be held Thursday, June 7, 2012 beginning at 7:00 p.m. at Uncle Charlie's Lounge, 6001 Yellowstone Road, Cheyenne, Wyoming, in conjunction with the annual Uncle Charlie's "DONE" golf tournament (15% of proceeds to the Cheyenne Boys and Girls Club).

Upon inquiry, Rick Parish, Director, Parks and Recreation Department, provided information concerning a past Wyo. Dept. of Transportation (WYDOT) beautification project on West Lincolnway involving trees and landscaping areas that has resulted in future maintenance by the City after completion of the project. He noted department staff has worked on irrigation system repairs and replacement of trees, which may be covered by warranty, and discussed the current status of the trees and watering system. Doug Vetter, City Engineer, advised when the project was accepted from WYDOT last fall, it was his understanding that the warranty WYDOT had with the landscape contractor for the trees would be extended to the City. Mayor Kaysen provided additional information on staff contact with the landscape contractor involved. Upon inquiry, Mr. Parish also provided information on Forestry staff watering efforts for City tree areas along Pershing Blvd. and staffing levels and older equipment affecting services. It was noted that the Downtown Development Authority also assists with watering trees downtown.

Upon inquiry regarding the status of replacing non-working lights on the Depot Plaza, Mayor Kaysen advised the initial lighting fixtures and ballasts that were installed have failed to work properly; that a solution has been found and lighting replacements are in progress.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:17 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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